

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kelly Guillon	Team: Squad #02	CCRB Case #: 202203046	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 05/16/2022 11:52 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/16/2023	Precinct: 67		
Date/Time CV Reported Wed, 05/18/2022 12:23 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/18/2022 12:23 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Claude Dorsaint	00405	934791	067 PCT
2. DTS Matthew Granahan	04480	926899	ESS 07
3. DTS Michael Chapman	02937	945581	ESS 07

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Steven Tejada	11253	966364	067 PCT
2. PO Bharat Sukhra	03103	947523	067 PCT
3. PO Robert Espaillatperez	03311	972627	067 PCT
4. PO Ramon Lopez	23196	950778	067 PCT
5. DTS Nicholas Castiello	02065	952555	ESS 07
6. DTS Matthew Cahill	04139	929812	ESS 07

Officer(s)	Allegation	Investigator Recommendation
A . SGT Claude Dorsaint	Abuse: Sergeant Claude Dorsaint refused to provide his name to § 87(2)(b)	A . Substantiated
B . SGT Claude Dorsaint	Abuse: Sergeant Claude Dorsaint damaged § 87(2)(b) property.	B . Within NYPD Guidelines
C . SGT Claude Dorsaint	Abuse: Sergeant Claude Dorsaint entered § 87(2)(b) bedroom in § 87(2)(b) in Brooklyn.	C . Within NYPD Guidelines
D . DTS Michael Chapman	Abuse: Detective Michael Chapman searched § 87(2)(b) bedroom in § 87(2)(b) in Brooklyn.	D . Unfounded
E . DTS Matthew Granahan	Abuse: Detective Matthew Granahan searched § 87(2)(b) bedroom in § 87(2)(b) in Brooklyn.	E . Unfounded
F . SGT Claude Dorsaint	Abuse: Sergeant Claude Dorsaint forcibly removed § 87(2)(b) to the hospital.	F . Within NYPD Guidelines

Case Summary

§ 87(2)(b) filed this complaint via telephone with the CCRB on May 18th, 2022 (BR 01). § 87(2)(g)

On May 16th, 2022, at approximately 11:52 PM, Police Officers Bharat Sukhra and Robert Espaillatperez from the 67th Precinct responded to § 87(2)(b) in Brooklyn in response to a 911 call from § 87(2)(b) roommate, § 87(2)(b) regarding § 87(2)(b) allegedly menacing her with a knife. While the officers were conversing with § 87(2)(b) § 87(2)(b) entered her bedroom, locked the door, and refused to open the door for the officers. Sergeant Claude Dorsaint and Police Officer Ramon Lopez from the 67th Precinct arrived at the scene and § 87(2)(b) requested Sergeant Dorsaint's name from behind her closed bedroom door. Sergeant Dorsaint replied, "I'm not-, open the door so we can talk" (Allegation A: Abuse of Authority – Refusal to Provide Name, substantiated). Sergeant Dorsaint requested Emergency Service Unit (ESU) officers to the location and Detectives Michael Chapman, Matthew Granahan, Nicholas Castiello and Matthew Cahill of Emergency Service Squad 7 responded. They forcibly opened § 87(2)(b) bedroom door and Detectives Chapman and Granahan entered § 87(2)(b) bedroom and allegedly searched within her bedroom as they moved around books that were on her nightstand (Allegation B: Abuse of Authority – Property damage, Within NYPD Guidelines) (Allegation C: Abuse of Authority – Entry of Premises, Within NYPD Guidelines) (Allegations D and E: Abuse of Authority – Search, Unfounded). § 87(2)(b) was then placed in handcuffs and transported to § 87(2)(b) (Allegation F: Abuse of Authority – Forcible Removal to Hospital, Within NYPD Guidelines). § 87(2)(b) was not arrested or summonsed.

Body-worn camera (BWC) footage was received from the BWCs of Police Officers Sukhra, Espaillatperez, and Lopez, Detectives Chapman, Granahan, Castiello, and Cahill, and Sergeant Dorsaint (BR 02). The footage was summarized on IA #83 (BR 03).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Claude Dorsaint refused to provide his name to

§ 87(2)(b)

Allegation (B) Abuse of Authority: Sergeant Claude Dorsaint damaged § 87(2)(b) property.

Allegation (C) Abuse of Authority: Sergeant Claude Dorsaint entered § 87(2)(b) bedroom in 68 East 96th Street, Apartment 1R, in Brooklyn.

Allegation (D) Abuse of Authority: Detective Michael Chapman searched § 87(2)(b) bedroom in 68 East 96th Street, Apartment 1R, in Brooklyn.

Allegation (E) Abuse of Authority: Detective Matthew Granahan searched § 87(2)(b) bedroom in 68 East 96th Street, Apartment 1R in Brooklyn.

Allegation (F) Abuse of Authority: Sergeant Claude Dorsaint forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) was interviewed by the CCRB on May 23rd, 2022 (BR 04) and Sergeant Dorsaint was interviewed by the CCRB on June 20th, 2023 (BR 05).

§ 87(2)(b) stated that prior to police officers arriving, she was in her apartment when she decided to remove § 87(2)(b)'s bags from the apartment. While doing so, § 87(2)(b) came up from behind § 87(2)(b) and raised her hands up, gesturing to § 87(2)(b) that she was going to fight her. § 87(2)(b) turned around and told § 87(2)(b) "If you touch me, I will hit

you back. I will beat you so bad that you would never think it was me that hit you.” § 87(2)(b) then took out her phone and appeared to call 911. While on the phone, § 87(2)(b) alleged that § 87(2)(b) had attacked her with a knife and that § 87(2)(b) threatened to kill her. § 87(2)(b) denied having a knife during her interaction with § 87(2)(b) and explained that she only had her keys in her hand. Approximately one hour later, § 87(2)(b) reentered her apartment and took a shower. While taking the shower, officers entered her apartment and knocked on her bathroom door, requesting her to exit. Upon exiting her bathroom, § 87(2)(b) saw police officers and EMTs within her apartment. The officers informed § 87(2)(b) that they responded to her location because she threatened someone with a knife. § 87(2)(b) then told the officers that she wanted to go into her bedroom, and they allowed her to do so. Approximately 10 minutes later, § 87(2)(b) heard loud knocking at her bedroom door as officers continuously asked her if she was “okay.” § 87(2)(b) explained to the officers that they had just seen her earlier and explained that she was okay. The officers explained that in order to verify that she was okay, they had to see her and requested that she open her bedroom door. § 87(2)(b) did not open her door and told the officers that § 87(2)(b)’s accusations were false. Approximately 30 minutes later, § 87(2)(b) bedroom door lock was broken by police officers, and they forced the door open. Two police officers entered her bedroom and began moving around the books on her nightstand, apparently in search of something. § 87(2)(b) then left her bedroom and was handcuffed behind her back by an officer and removed to § 87(2)(b) via an ambulance.

On § 87(2)(b), § 87(2)(b) filed a Notice of Claim about this incident (**BR 09**), stating that on May 17th, 2022, officers from the 67th Precinct responded to her apartment illegally without a warrant or cause, and they “assaulted and battered” her, causing serious injuries to her left arm, left wrist, left knee, left leg and other physical injuries. The officers “violently” grabbed and forcefully placed § 87(2)(b) in handcuffs and transported her to § 87(2)(b).

Police Officer Espaillatperez’s BWC footage (**BR 06**), starting at runtime 02:00, shows Police Officer Sukhra and Police Officer Espaillatperez arriving at the residence and speaking with § 87(2)(b) and her son. § 87(2)(b) informs the officers that § 87(2)(b) is within the apartment taking a shower and explains that she called 911 because § 87(2)(b) was “crazy and violent again.” § 87(2)(b) tells the officers that § 87(2)(b) had taken her belongings out of the apartment and when she confronted her about it, § 87(2)(b) told her to get out of the apartment so she could fight her. § 87(2)(b)

§ 87(2)(b) tells the officers that § 87(2)(b) had been menacing her and her underaged children with a knife for approximately seven days and had a violent history of attacking women. § 87(2)(b) described the knife she was menaced with as a 12-inch bladed knife and that § 87(2)(b) threatened to cut her throat. While telling her narrative to the officers and EMTs (Police Officer Espaillatperez’s BWC footage does not capture at what point EMTs enter the apartment), Police Officer Sukhra knocks on the bathroom door and request for § 87(2)(b) to exit the bathroom approximately five times so they could talk. § 87(2)(b) tells the officer that she is in the shower and does not open the door. At runtime 09:00, Police Officer Sukhra informs an EMT that he had informed his “boss” that § 87(2)(b) barricaded herself within the bathroom and that his boss would be responding to the location. Police Officer Sukhra then asks if the EMTs need to speak with § 87(2)(b) once she exits the bathroom and an EMT replies, “I’m ready to go, when she comes out get her moving, I don’t need to talk to her.” At runtime 11:35, § 87(2)(b) exits the bathroom with a towel as Police Officer Sukhra and an EMT tell her to go inside her bedroom and get “dressed”. § 87(2)(b) tells the EMT that she does not want to go to the hospital and “If I don’t want to go,

you cannot force me.” § 87(2)(b) denies having any psychiatric history § 87(2)(b). At runtime 14:50, § 87(2)(b) tells the officers that she is going to put on her pajamas and closes the door to her bedroom, once the bedroom door is closed a metallic noise could be heard resembling the sound of a door lock being activated. Police Officer Sukhra knocks on § 87(2)(b) bedroom door and warns § 87(2)(b) that if she does not open her bedroom door, it will be opened by police officers. § 87(2)(b) does not open the door.

At runtime 1:45 into Sergeant Dorsaint’s BWC footage (**BR 07**) he and Police Officer Lopez enter the apartment as Police Officer Sukhra tells him that § 87(2)(b) is, “§ 87(2)(b)” and “She’s definitely going.” Sergeant Dorsaint then approaches § 87(2)(b) still closed bedroom door and attempts to speak with her as he knocks on her door and calls out to her by using her first name. § 87(2)(b) stays silent as Sergeant Dorsaint loudly knocks on the bedroom door. § 87(2)(b) then threatens to report Sergeant Dorsaint to the CCRB and Sergeant Dorsaint tells § 87(2)(b) to exit her bedroom so they could talk and so he could offer her his shield number. § 87(2)(b) tells Sergeant Dorsaint that she does not want to speak with police officers because she did not do anything wrong. Sergeant Dorsaint informs § 87(2)(b) that she has to open her bedroom door and if she does not, they would have to forcibly open the door. At runtime 04:25, § 87(2)(b) tells Sergeant Dorsaint “The CCRB is going to be hearing all about that, what is your name?” and Sergeant Dorsaint replies, “I’m not-, Open the door so we can talk.” § 87(2)(b) then tells Sergeant Dorsaint, “What’s your name? I’m not opening the door for you, have a good night officer.” Sergeant Dorsaint then speaks into his radio and requests ESU for a “barricaded EDP.” While waiting for the ESU officers, § 87(2)(b) explains why she called 911 to Sergeant Dorsaint. During this time, Police Officer Sukhra, Police Officer Espaillatperez and EMTs at the scene all take turns attempting to get § 87(2)(b) to open her bedroom door and are all unsuccessful. At runtime 20:00, ESU officers arrive at the scene as they set up their tools to force open § 87(2)(b) bedroom door. During this process an ESU officer informs Sergeant Dorsaint that everyone aside from the ESU officers must leave the apartment as they use their tools. At runtime 28:15, everyone aside from the ESU officers exit the apartment as Sergeant Dorsaint waits within the doorway of the front entrance. Power tools can be heard within the apartment; however, Sergeant Dorsaint’s BWC footage does not capture what the ESU officers are doing at this time. Detective Chapman speaks with § 87(2)(b) from behind her closed bedroom door and he tells her to open her bedroom door or else they will have to forcibly open it. § 87(2)(b) does not open the door. At runtime 38:20, a loud noise is heard as a door is heard being swung open. Detective Granahan then calls out to Sergeant Dorsaint as he reenters the apartment with Police Officers Sukhra and Police Officer Espaillatperez behind him. Sergeant Dorsaint stands in front of the entrance to § 87(2)(b) bedroom as the door is now wide open. § 87(2)(b) is seen seated on her bed as the ESU officers command her to get up and leave her bedroom. At runtime 40:20, § 87(2)(b) is placed in handcuffs by Police Officer Sukhra and escorted out of the apartment. At runtime 44:45, Sergeant Dorsaint observes the ESU officers as they use their tools to repair § 87(2)(b) bedroom door. BWC footage shows that the bedroom door is intact as the ESU officers are re-screwing in the bedroom door’s doorframe. At runtime 48:55, Detective Granahan closes § 87(2)(b) bedroom door and locks the door using a set of keys. Detective Granahan examines the door as he attempts to pull open the door using the doorknob and it does not budge. Sergeant Dorsaint’s BWC captures all conversations had between himself and § 87(2)(b) on the date of the incident and it does not capture him providing her with his name.

Detective Chapman’s BWC footage (**BR 08**) starts its recording while the ESU officers at the scene are attempting to open § 87(2)(b) bedroom door. At this point in time only ESU officers are within the apartment. At runtime 01:40, Detective Chapman is the officer closest to the

bedroom door as he presses his riot shield against § 87(2)(b) bedroom door. The door then opens as Detective Chapman and Detective Granahan both enter § 87(2)(b) bedroom. Detective Chapman walks to the center of the bedroom as Detective Granahan stands by the doorway to the bedroom. Officers command § 87(2)(b) to exit the room as she takes photos of the officers. At runtime 04:15, § 87(2)(b) is removed from her bedroom by Detective Chapman and Detective Granahan. Detective Chapman's BWC footage does not capture him or Detective Granahan conducting a search within § 87(2)(b) bedroom. Neither officer is captured in this BWC footage making physical contact with any of § 87(2)(b) property nor are officers seen moving around § 87(2)(b) books. Throughout the interaction, Detective Chapman is the only officer fully within § 87(2)(b) bedroom as Detective Granahan does not move from where he is standing, and the remaining ESU officers stay behind the bedroom door.

§ 87(2)(a) PHL § 18(6)

Sergeant Dorsaint stated that prior to the incident he had responded approximately five times to the incident location in regard to § 87(2)(b) § 87(2)(b) and her violent tendencies toward her roommates and in each of these incidents, § 87(2)(b) was brought to the hospital due to her being a danger to her roommates. On the date of the incident, Sergeant Dorsaint was informed prior to arriving at the scene that § 87(2)(b) roommate had alleged that she had menaced her with a 12-inch knife. Once Sergeant Dorsaint entered the apartment, he was informed by EMTs that § 87(2)(b) would be going to the hospital regarding § 87(2)(b)'s accusation and was informed by officers at the scene that she had barricaded herself within her bedroom. Sergeant Dorsaint attempted to gain voluntary compliance by speaking with § 87(2)(b) from behind her closed bedroom door and instructed her to open the door. § 87(2)(b) did not open her front door and instead asked Sergeant Dorsaint for his name. Sergeant Dorsaint told § 87(2)(b) that he would provide his name once she opened her door. Sergeant Dorsaint refused to provide his name to § 87(2)(b) upon her request because he was bargaining with § 87(2)(b) in the hopes she would open the door. Due to § 87(2)(b)'s narrative, Sergeant Dorsaint believed it was possible that § 87(2)(b) might have had a knife within her bedroom and could have committed self-harm. Due to this, Sergeant Dorsaint prioritized getting the bedroom door open over providing his name. § 87(2)(b) then went silent for an unknown period of time, and he requested ESU to the location for a "barricaded EDP" with a knife. Sergeant Dorsaint requested ESU to his location because he wanted them to forcibly open § 87(2)(b) door for her own safety and the safety of § 87(2)(b) and her children. Sergeant Dorsaint was not a witness to how ESU officers went about opening § 87(2)(b) bedroom door because he and everyone else within the apartment were instructed to leave the apartment by ESU once they began preparing to open § 87(2)(b) bedroom door. Upon the door being opened, an ESU officer called Sergeant Dorsaint back inside the apartment and he denied seeing any officers searching within § 87(2)(b) bedroom. Sergeant Dorsaint then instructed Police Officer Sukhra to place § 87(2)(b) in handcuffs for the safety and convenience of the EMTs and officers at the scene, because she had not initially complied with police officers. Sergeant Dorsaint did not provide § 87(2)(b) with his name upon her bedroom door being opened because she did not ask him for his name once the door was opened. Sergeant Dorsaint did not believe it was necessary to provide § 87(2)(b) with his name because she already knew who he was from him responding to those five previous incidents. On one of those incidents, § 87(2)(b) had recorded his name

plate and badge number with her phone. Sergeant Dorsaint did not know if § 87(2)(b) could have identified who he was when he was communicating with her from behind her closed bedroom door.

NYPD Administrative Guide 304-11 (BR 11) states that all members of service shall courteously and clearly state their name to anyone who request them to do so unless exigent circumstances prevent them from being able to do so.

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] It is therefore recommended that **Allegation A** be **substantiated**.

Patrol Guide Procedure 216-01 (BR 12) defines an Aided case as any occurrence coming to the attention of an officer which requires that a person receive medical aid or assistance because such a person has one of a list of conditions, one of which being that the person is mentally ill. In such a situation, officers are to render reasonable aid and cooperate with ambulance and hospital personnel in every reasonable manner.

Patrol Guide Procedure 221-13 (BR 13) defines an emotionally disturbed person (EDP) as a person who appears to be mentally ill or temporarily deranged and is conducting themselves in a manner which a police officer reasonably believes is likely to result in serious injury to themselves or others. Officers are instructed to take the person into custody and have the person removed to a hospital. When an EDP is barricaded and refuses to leave voluntarily, the supervisor at the scene is tasked with requesting ESU at the scene.

People v Rodriguez, 77 A.D. 3d 280 (2010) **(BR 14)** notes that, under the emergency doctrine, officers may enter a civilian's home without a warrant in emergency situations. The emergency doctrine requires that officers have a "reasonable basis to believe that there is an emergency at hand that required their immediate assistance for the protection of life" and a strong belief that the emergency is occurring in the location to be entered.

Onderdonk v State, 170 Misc. 2d 155 (1996) **(BR 17)** states that police officers may damage property only if doing so is reasonably necessary to carry out their duties.

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(2)(g) It is therefore recommended that Allegations B, C, and F be closed as **within NYPD guidelines**.

§ 87(2)(b) stated during her interview that upon her bedroom door being opened, officers began searching her bedroom as they moved around books placed in her nightstand. However, the BWC footage does not capture any police officers searching within § 87(2)(b) bedroom at any point nor does it capture any police officers making any physical contact with § 87(2)(b) property while interacting with her. Given these facts, it is recommended that **Allegations D and E both be closed as unfounded.**

§ 87(2)(g)

Civilian and Officer CCRB Histories

- [illegible]

